

Principle of a general partner, thus making Mr. Suri's mistake inexcusable. (Opposition at pp. 3-4.)

Defendant Menlo Westridge argues that Mr. Suri's mistake is reasonable in an era of electronic service, inadvertent non-opening of an embedded link— particularly when emails may contain automated security warnings, duplicates, or non-substantive notifications—can reasonably lead to a mistaken belief that no action is required. (Motion at p. 5: 10-13.) This case is one of three related cases that Defendant Menlo Westridge is involved in, all arising out of the same construction project. Defendant Menlo Westridge has timely responded in one case and is anticipating their response to the other. Defendant Menlo Westridge posits this is further evidence that Defendant is not ignoring the litigation process but intends to actively participate and litigate on the merits. (Motion at p. 5: 16-20.)

Timeliness and Diligence

Plaintiff argues that it further expended effort and costs in obtaining the default Judgment in January 2026.(Opposition at p. 4: 17-19.)Defendant Menlo Westridge mentions that it twice sought an agreement to set aside the default but received zero response from Plaintiff who simply proceeded to obtain a default judgment after outreach by Defendant's counsel. (Sawyer Decl. ¶ 2.) When the attempt to secure this relief voluntarily failed, Defendant brought this motion. Defendant Menlo Westridge has thus acted within a reasonable time, and well within the 180-day limit imposed by Code of Civil Procedure section 473.

Considering the totality of the circumstances, Defendant Menlo Westridge has shown a satisfactory excuse for its default, and diligence in making the motion after discovery of the default judgement. Accordingly, the Court finds good cause to grant Defendant's Motion.

Ruling

1. The Court **grants Defendant Menlo Westridge Affordable Partner, LP's Motion to Set Aside Default.**
2. The Court will set a Case Management Conference for this case at the hearing on June 3, 2026. The Parties are ordered to appear remotely or in-person for the CMC.

17. 9:00 AM CASE NUMBER: C25-02245

CASE NAME: FERBER LAW VS. JAGJEET SINGH

***HEARING ON MOTION IN RE: FOR INSTALLMENT PAYMENT ORDER AND STAY OF ENFORCEMENT OF JUDGMENT**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Jagjeet Singh's Motion for Installment Payment Order and Stay of Enforcement pertaining to the judgment entered against him by Plaintiff Ferber Law is **denied**.

Background

On August 6, 2025, Plaintiff Ferber Law, A Professional Corporation, filed a complaint against

Defendant for unpaid legal fees, and after Defendant failed to respond, a default was entered on October 7, 2025, followed by a default judgment of \$55,992.35 on December 1, 2025, with an Abstract of Judgment recorded on December 23, 2025. Defendant has now filed a Motion for Installment Payments and for a Stay of Enforcement.

Plaintiff filed an opposition on May 15, 2026, which, in essence, claims that Defendant does not cite to statutory or decisional authority that allows the relief requested by Defendant. Defendant filed a “reply” brief on May 22, 2026, which contains exhibits not properly authenticated by declaration. The Court does not consider the documents attached to Defendant’s reply brief.

Analyses

Self-Represented Litigant

The Court is aware that Defendant is proceeding without an attorney in this lawsuit. However, a self-represented party “is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys.” *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 (“mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to “the same ‘restrictive procedural rules as an attorney’”). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594. Applied here, there is no evidence that Defendant was misled by the Court or Plaintiff.

Defendant Does Not Cite to Authority Allowing Post-Judgment Relief Requested

Defendant cites to Code of Civil Procedure § 683.520, requesting an installment plan and stay of enforcement, but this statute does not exist. Defendant also relies on Cal. Code of Civ. Proc. § 918 as the basis for a stay. This section only permits a stay pending an appeal. Here, no appeal was filed by Defendant. Accordingly, this section does not apply.

Since Defendant fails to provide any valid statutory or legal basis for the Motion, the Court finds good cause to deny this motion.

Ruling

Defendant's Motion for Install Payment and Request for Stay is **denied**.

18. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' COMPLAINT CCP 425.16
FILED BY: JARDINE, WENDY CHAPIN
TENTATIVE RULING:

The Court continues the hearing on this motion to June 10, 2026 at 9:00 a.m.

19. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JARDINE, WENDY CHAPIN
TENTATIVE RULING:

The Court continues the hearing on this motion to June 10, 2026 at 9:00 a.m.

20. 9:00 AM CASE NUMBER: C25-03654
CASE NAME: RACHYLL DEMPSEY VS. FCA US LLC,
HEARING ON DEMURRER TO: ANSWER
FILED BY: DEMPSEY, RACHYLL
TENTATIVE RULING:

Summary

Before the Court is Plaintiff Rachyll Dempsey's ("Plaintiff") Demurrer. The Demurrer relates to Defendant FCA US LLC's ("FCA" or "Defendant") Answer to Plaintiff's Complaint.

Plaintiffs demur to Defendants second through twenty-fifth affirmative defenses on several grounds.

For the following reasons, the Demurrer is **SUSTAINED-IN-PART** and **OVERRULED-IN-PART**.

The Demurrer is **SUSTAINED WITH LEAVE TO AMEND**, as to the second, third, fifth, sixth, seventh, eighth, eleventh, fourteenth, fifteenth, sixteenth, twentieth, twenty-second, twenty-third, and twenty-fourth affirmative defenses.

The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the seventeenth, eighteenth, twenty-first, and twenty-fifth affirmative defenses.

The Demurrer is **OVERRULED** as to the thirteenth and nineteenth affirmative defenses.

The Demurrer is **MOOT** as to the fourth, ninth, tenth, and twelfth affirmative defenses.